

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. PY 96-01

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDING AGAINST THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF WALTER THOMAS, Ed.D., LICENSE NO. 458

~~Respondent~~
Respondent.

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Walter Thomas, Ed.D, LPC ("Respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on October 19, 1991. Respondent has been so licensed since that date, except that his license was suspended on December 2, 1996 and remains suspended until this stipulation and order is fully executed.
3. Respondent is a person practicing psychotherapy in the state of Colorado as provided in C.R.S. §12-43-201(9). Respondent practiced psychotherapy in the cases involved in this proceeding.
4. The Board received complaints and information alleging actions by respondent that were prohibited activities under the Mental Health Act, C.R.S. §12-43-704(1).
5. The Board investigated this matter and determined that reasonable grounds existed to initiate disciplinary action against respondent's license to practice professional counseling and psychotherapy in Colorado. Therefore, the Board referred this matter to its legal counsel, the Colorado Attorney General, for initiation of disciplinary action.
6. It is agreed that the Board could establish a prima facie case of violations of prohibited activities. Respondent believes he could present evidence in rebuttal and mitigation of the Board's prima facie case and therefore does not admit that violations occurred. The parties wish to avoid the cost and time associated with full litigation of this matter and therefore enter into this stipulation and order.

7. Respondent understands he has the right to a formal disciplinary hearing, pursuant to § 12-43-705, C.R.S. (1991) in this proceeding. Respondent further understands and agrees that he voluntarily and knowingly enters into this stipulation and order and thereby waives his right to a hearing; relieves the Board of its burden of proving the facts and conduct contained in the complaint; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that, pursuant to § 12-43-705(5), C.R.S. (1991), he has the right to appeal the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

8. The Board hereby orders that respondent's license to practice professional counseling in the State of Colorado is placed on probation for a period of at least three (3) years commencing upon execution of this stipulation and order. During the probationary period respondent can practice professional counseling and psychotherapy only if he fully complies with all conditions and terms of this stipulation and order. Respondent is authorized to practice counseling and psychotherapy under the terms of this stipulation and order in either a private practice or institutional setting.

9. The conditions of respondent's probation are:

a. Respondent will strictly observe the prohibitions set forth in §12-43-704(1) and assure that he does not engage in any activities that are prohibited activities or fall below generally accepted standards of practice.

b. All of respondent's professional counseling and psychotherapy activities will be supervised by a Board-approved therapist ("practice monitor"), who evaluates and supervises respondent's professional counseling and psychotherapy and reports in writing to the Board in accordance with this stipulation and order. Professional counseling and psychotherapy activities, as used herein, shall refer to those activities so defined by appropriate Colorado statutes, specifically C.R.S. §§12-43-601(4) and 12-43-201(9). Respondent does declare his intention to undertake professional counseling on a part-time basis. This practice monitoring/supervision does not include spiritual and religious counseling which respondent may conduct in the normal course of his duties as a pastor of a particular church. Should a member of respondent's church request counseling that would fall under the definitions of professional counseling or psychotherapy respondent will refer such person to an appropriate practitioner.

(i) At the commencement of the practice monitoring

relationship the practice monitor will evaluate all aspects of respondent's practice or proposed practice of professional counseling and psychotherapy and his qualifications and ability to provide professional counseling and psychotherapy. The practice monitor will determine if respondent can provide professional counseling and psychotherapy in accordance with generally accepted standards of practice, with skill and safety for his clients, and if his practice is appropriate to his qualifications.

(ii) Should the practice monitor determine that respondent can not practice professional counseling and psychotherapy or some portion of his practice of professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients or does not have the appropriate qualifications for his professional counseling and psychotherapy practice or some portion of his practice, respondent shall discontinue any portion of his professional counseling and psychotherapy practice that he is not qualified, competent or safe to conduct. Based on the findings and recommendations of the practice monitor, the Board shall determine necessary actions that respondent must take and conditions he must satisfy so that he can be considered qualified, competent, and safe to practice professional counseling and psychotherapy in any areas the practice monitor finds he is not qualified, competent, or safe to practice. Once respondent satisfies the Board that he has taken the appropriate actions and satisfied the conditions so that he is qualified, competent, and safe to fully practice professional counseling and psychotherapy, he may resume the full practice of professional counseling and psychotherapy.

(iii) The practice monitoring shall consist of individual contact between respondent and his practice monitor that occurs for at least one hour or such longer time as the practice monitor deems necessary for every twenty hours of client contact, but at least once a month. All such monitoring sessions shall be conducted with personal face to face contact for the first six months of the practice monitoring. After the first six months of practice monitoring, unless otherwise ordered by the Board, one practice monitoring session each month shall be conducted in person with the practice monitor and a second session, if necessary, may be conducted by telephone. Should respondent's practice require a third hour of practice monitoring during a month, that hour would be conducted by adding a second hour to the in person monitoring session. Should a fourth hour of practice monitoring be necessary during a month, that hour would be conducted by adding a second hour to the telephone monitoring session. During the practice monitoring meetings, respondent and his practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients.

(iv) The practice monitor is authorized to examine and shall examine such client records and case files as the practice monitor or the Board deems appropriate and necessary to assure that respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for his clients.

(v) The practice monitor must report the results of her/his monitoring to the Board in writing and send a copy of each report to the respondent. The practice monitor must submit her/his first report within five days of the end of the first full month after the Board's written approval as respondent's practice monitor. The practice monitor shall submit subsequent reports within five days of the last day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis).

(vi) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice or with reasonable skill and safety for his clients, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing and within 48 hours of forming her/his opinion. The practice monitor shall send a copy of such a report to the respondent when s/he sends the report to the Board.

(vii) After Board approval of the practice monitor, respondent and his practice monitor shall enter into a written contract for practice monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this stipulation and order and the Board's file; has read these materials; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor. The practice monitor shall assure that written notification informing each professional counseling and psychotherapy client of the name, address, and telephone number of the practice monitor is provided to each client. This notification may be provided in a mandatory disclosure statement. The practice monitor reports shall note that such written notification was provided to each client.

(viii) Respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of such termination, respondent cannot practice professional counseling and psychotherapy without first obtaining another Board-approved practice monitor, who shall

conduct her/his monitoring and report to the Board in accordance with this stipulation and order.

(ix) Respondent shall not practice professional counseling or psychotherapy in Colorado without an approved practice monitor in place.

c. Respondent cannot supervise or consult with other persons for the purpose of those other persons providing psychotherapy unless respondent's supervision or consultation is monitored by respondent's practice monitor in accordance with paragraph 8b.

d. Respondent must pay all costs or expenses incurred for the practice monitoring and any other expenses incurred in fulfilling the terms of this stipulation and order.

e. Respondent is responsible for the reports due under this stipulation and order and must take reasonable steps to assure that his practice monitor reports to the Board in accordance with this stipulation and order.

f. Following the Board's written approval of respondent's practice monitor, respondent shall provide written notification of the name, address, and telephone number of his practice monitor to each client to whom he is currently providing professional counseling or psychotherapy services and any client who begins or resumes receiving professional counseling or psychotherapy services after such date. Such notification may be provided in a mandatory disclosure statement.

g. If respondent is not providing professional counseling or psychotherapy to clients as of the effective date of this stipulation and order, he must file a written statement with the Board indicating that he has no professional counseling or psychotherapy clients.

h. Respondent agrees that he will provide and allow his practice monitor to provide medical or psychological records or information to the Board in the event the practice monitor determines that respondent is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or is unable to treat clients with skill and safety, or has a physical or mental disability which may result in danger to the health or safety of persons under his care. As part of this stipulation and order defendant explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his practice monitor if the practice monitor determines that he is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or is unable to treat clients with skill and safety, or has a physical or mental disability which may result in

danger to the health or safety of persons under his care.

10. All time periods and obligations stated in this stipulation and order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the supervision of a Board approved practice monitor, they are tolled and suspended at all other times. The required period of practice monitoring shall commence upon the written approval of respondent's practice monitor.

11. Respondent may request the Board to shorten the period of probation and practice monitoring after he has completed one year of practice monitoring. Any change or modification of the probation and practice monitoring will be in the discretion of the Board.

12. In the event respondent discontinues the practice of professional counseling and psychotherapy in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. The notification shall include the date on which he ceased practicing and his new address if he relocated.

13. In the event respondent resumes professional counseling and psychotherapy in Colorado, he shall notify the Board in writing within thirty (30) days of the resumption of professional counseling and psychotherapy in Colorado. Such notification shall include his address and the date on which he resumed practice.

14. As used in this stipulation and order, "engaged in the practice of professional counseling," "practice of professional counseling," "professional counseling treatment," and "professional counseling services," have the same meaning as "professional counseling," as defined in C.R.S. §12-43-601(4), and "engaged in the practice of psychotherapy", "practice of psychotherapy", "psychotherapy practice", or "psychotherapy services" shall have the same meaning as "psychotherapy" found in C.R.S. §12-43-201(9).

15. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

16. The Board order resulting from this stipulation and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §12-43-705; C.R.S. §24-4-105; and the Board's rules.

17. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

18. Each provision of this stipulation and order is separate.

In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

19. This stipulation and order is a public record.

20. This stipulation and order shall take effect on acceptance and signature by the Board ("effective date of the order").



WALTER L. THOMAS, Ed.D., LPC
Respondent

Subscribed and sworn to before me in the County of
Larimer, State of Colorado, this 3rd day of
March 1997.


NOTARY PUBLIC

My Commission Expires:

MY COMMISSION EXPIRES 10-12-99

ACCEPTED, SIGNED, AND ORDERED this 16th day of MARCH, 1997.

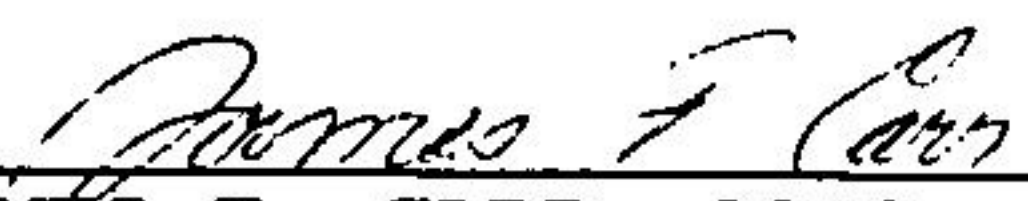
COLORADO STATE GRIEVANCE BOARD



By: DANIEL R. ROBINSON
Chair

APPROVED AS TO FORM

FOR THE ATTORNEY GENERAL



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